

Willie Reinhardt
No. 6384, vs.
Fredrica Splittstoesser
et al.

In the District Court,
Polk County, Texas,
May Term 1937,

On this the 16th day of June, 1937, all of the parties in the above entitled and numbered cause, wherein, Willie Reinhardt and Julius Reinhardt are plaintiffs and Chas H Reinhardt and Fredrica Splittstoesser are defendants, having been duly cited to appear herein and the plaintiffs appearing in person and by Counsel and the defendant E H Splittstoesser having appeared by and through his Counsel and Chas H Reinhardt, Fredrica Splittstoesser, having failed to appear, come on to be heard the report this day filed herein, of the Commissioners appointed by the Court to partition and distribute the property involved in the above entitled and numbered cause among the said parties plaintiff and defendant, which said report made in obedience to the order of this Court of date June 16th 1937, reads as follows:-

Willie Reinhardt et al.
No 6384 vs.
Fredrica Splittstoesser et al.

In the District Court
Polk County, Texas,
May Term 1937,

To the said Honorable Court:

In obedience to a decree, and writ of partition issued from said Court in the above entitled and numbered cause, requiring us to partition, in accordance with said decree, and the law among the joint owners Willie Reinhardt, Julius Reinhardt, Charlie Reinhardt and Fredrica Splittstoesser the following described land and situated in Polk County, Texas,

First Tract:-

A part of the William D. Valentine survey and described thus:-

Beginning at the N W corner of the J H Parsons survey, a stake, Chestnut oak brs N 7 N. 6 brs. Holly 10 in x brs S 69 E 9 brs.

Thence East with said Parsons line at 79 brs McManus Creek, 107 brs corner, stake white oak S 50 N. 5:2 brs. white oak x N 81 E 7 brs.

Thence N 196 brs to corner said Valentine survey, stake, magnolia brs 38 brs. ash brs N 10 N 5 brs.

Thence West 120 brs cross said Creek, at 950 brs stake for corner, pine brs S 61 N 4 brs. pine brs S 55 E 9 brs.

Thence south with the west line of said Valentine survey, at 984 var. stake, 100 feet from center of the MK & T Ry far corner;

Thence with said MK & T right of way, being 100 feet from the center of its railroad track to the east line of said Valentine survey, which is also the west line of the J. H. Parsons survey stake for corner 100 feet from the center of the said MK & T Ry track;

Thence north with said Parsons line 472 var. to the place of beginning, containing one hundred and twenty one (121) acres of land.

Second Tract

Second Tract: A Part of the J. H. Parsons survey and described thus:

Beginning at the NW corner of said J. H. Parsons survey, stake, hally 10 in mhd 7 hrs S 69 E 9 var. a white oak 24 in hrs. N 7 W 6.4 var;

Thence east 79 var to center of McManus Creek, corner in said Creek;

Thence up said Creek with its meandering to a stake for corner 50 feet from the center of the MK & T Ry track;

Thence S 81 W 50 feet from center of said railroad track to the west line of said Parsons survey, which is also the east line of the Valentine survey, stake for corner 50 feet from the center of said railroad track

Thence north with the west line of said Parsons survey, 472 var to the place of beginning containing sixteen (16) acres of land.

We have this day with the assistance of J. I. Manry, surveyor to execute said writ of partition as therein required and as required by law, and having found, upon survey that said tract of land is in the shape of a triangle, with the dimensions and frontage shown on the annexed plat of survey and field notes which are incorporated in this report, and having found from the evidence before us that said tract could be partitioned in four convenient parcels we designated and do now designate a "share", and each

is so designated on the accompanying plat.
And having found that share number one (1) contains the following land.

Beginning in the west B line said Valentine survey 44 ac north from the S.W. corner same;

Thence north with said Valentine west B line 340 acs to stake for corner sweet gum, 10 x N 55 E 19 1/2 acs;

Thence N 75 E ab 859 acs cross east B line said Valentine and west B line Parsons, 469 acs stake for corner pin oak 6 x N 5 W 3 1/2

Thence south 196 acs to the old MK & Ry stake 50 feet from center of tract hackberry 10 x north 8 acs;

Thence with and parallel with said R.R. right of way line 110 acs to said Parsons west B line and east line Valentine.

Thence North 50 feet stake in north line said right of way line;

Thence with said right of way fence line and parallel with said R.R. to place of beginning 44 acres of land, 40 1/2 acres Valentine 3 1/2 acres Parsons.

And we find share No. two (2) to be as follows:

Beginning at the N.W. corner of a 44 acre tract made for Mrs. Fredrica Splittstoesser, stake for corner sweet gum 10 x N 65 E 19 1/2 acs.

Thence N 75 E with North B. line some 306 acs stake, in field for corner;

Thence North 390 acs to stake for corner in South B. line Willie Reinhardt tract sweet gum 5 x N 86 W 4 acs.

Thence with said Willie Reinhardt line N 84 W 209 acs stake for corner post oak 12 x north S. 8 acs;

Thence South 114 acs stake for corner mulberry 20 x N 44 W 3 acs;

Thence West 97 acs to the West B. line said Valentine survey, stake for corner post oak 4 x S 68 W 3 acs.

Thence South 387 acs to place of beginning, 20 acres Valentine.

And we find share No. three (3) to be as follows:

Share #1

Share #2

Share #3

Beginning at the N E corner of a 20 acre tract made for Charlie Reinhardt stake, sweet gum 5 x 8 6 ft. 4 vs.

Thence S 84 E with public road 710 vs to center of McManus Creek at the bridge on said creek;

Thence up said creek with its meanderings to stake for corner 30 feet from center of M K & P Ry;

Thence with said R R right of way line S 81 ft. to the S.E. corner of a 44 acre tract made for Mrs. Fredrica Splittstoesser, hickberry 10 x North 8 vs;

Thence North with said 44 acre tract 196 vs, to the N E corner said 44 acre tract, stake for corner pin oak 6 x N 5 ft 3 1/2 vs;

Thence S 75 ft with North B. line said 44 acre tract 663 vs to the S.E. corner Chas. H Reinhardt tract stake for corner in field;

Thence North with East B. line said tract 390 vs to place of beginning, 42 1/2 acres, 11 1/2 acres Parsons 31 acres Valentine surveys.

And we find Share No. four (4) to be as follows:-

Beginning in the center of McManus Creek at the N.E. corner Julius Reinhardt at bridge on said creek;

Thence with public Road N 84 ft with North B. line of said Julius Reinhardt 920 vs to the most N ft. corner Chas. H Reinhardt 20 acre tract, stake for corner, post oak 12 x North 3.3 vs;

Thence South 114 vs to another corner said Chas. H Reinhardt, mulberry, 20 x N 44 ft, 3 vs:-

Thence West 97 vs to the West B. line said Valentine survey, same being another corner said 20 acre tract post oak 4 x S 68 ft, 3 vs;

Thence North with said Valentine line 253 vs to the N ft corner said Valentine survey stake, for corner in old road;

Thence East with North B. line said Valentine survey 950 vs to N E corner same;

Thence South to McManus Creek;

Thence up said Creek with its meanderings to place of beginning, 32 acres, 30 1/2 acres Valentine, 1 1/2 acres Parsons.

That all shares described herein, are of equal value. We have made a division of such shares, first setting apart, as between said parties, first to Mrs. Fredrica Splittstoesser, Second to Chas H Reinhardt, Third to

Julius Reinhardt, and fourth to Millie Reinhardt, and we have and do hereby set aside and allot share number one (1) to Mrs. Fredricka Splittstoeser, and we hereby set aside and allot share number two (2) to Chas H Reinhardt, and we do hereby set aside and allot share number three (3) to Julius Reinhardt, and we do hereby set aside and allot share number four (4) to Millie Reinhardt, which partition we judge to be fair and equitable between said parties and in proportion to the respective interests to which said parties are respectively entitled as determined by such decree. Our services occupied 1 day during which time J F Maury was employed as surveyor and platting, for whom we recommend a fee of \$23.50 dollars.

Witness our hands this the 16th day of June, 1937,
(Signed)

E M Burchfield
H L Wright
V B Bailey.

And it appearing to the Court, after having examined said report carefully and having heard all the exceptions and objections urged thereto, and having heard evidence in favor of and against same, that said partition has been ^{made} fairly and according to law, and that no valid exceptions have been taken thereto, and having heard evidence in favor of and against the same, that said partition has been made fairly and according to law and that no valid exceptions have been taken thereto.

It is therefore ordered, adjudged and decreed by the Court that the said report of partition be and the same is hereby and now in all respects approved and confirmed by the Court.

It is further ordered, adjudged and decreed by the Court that the title shall be, and is hereby in each party, to whom a share has been allotted, to such share or portion of such property as is set apart to him by said Commissioners, in said report as against each of the other parties to this suit, his heirs, executors, administrators or assigns, as fully and effectually as the deed of such party or parties could vest the same, and this decree shall have the same force and effect as a full warranty deed of conveyance.

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E P Murphy, Judge.

